

Devendra Singh v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 21 November 2017 · Writ-C No. 55076 of 2017 · **Writ disposed; petitioner left to Clause 6.5 of the 2005 Code.**

HEADNOTE

A consumer who disputes an electricity bill issued by U.P. Power Corporation Ltd. must invoke Clause 6.5 of the U.P. Electricity Supply Code, 2005. The High Court disposed of the writ without examining the bill, leaving that statutory remedy open.

FACTUAL SUMMARY

Devendra Singh filed a writ petition in the Allahabad High Court against U.P. Power Corporation Ltd. and two others, challenging an electricity bill issued by the Corporation. He sought writ relief on that billing dispute. Counsel for the Corporation submitted that the proper course was Clause 6.5 of the U.P. Electricity Supply Code, 2005. The Division Bench of Dilip Gupta and Jayant Banerji, JJ. heard the petition on 21 November 2017.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — alternate remedy

HOLDING

Where the petitioner disputes an electricity bill issued by the licensee, the remedy is to invoke Clause 6.5 of the U.P. Electricity Supply Code, 2005; the writ petition is disposed of leaving that remedy open, without examining the bill on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILL

The Court did not examine the bill; the petitioner was left to Clause 6.5. ¶ 1